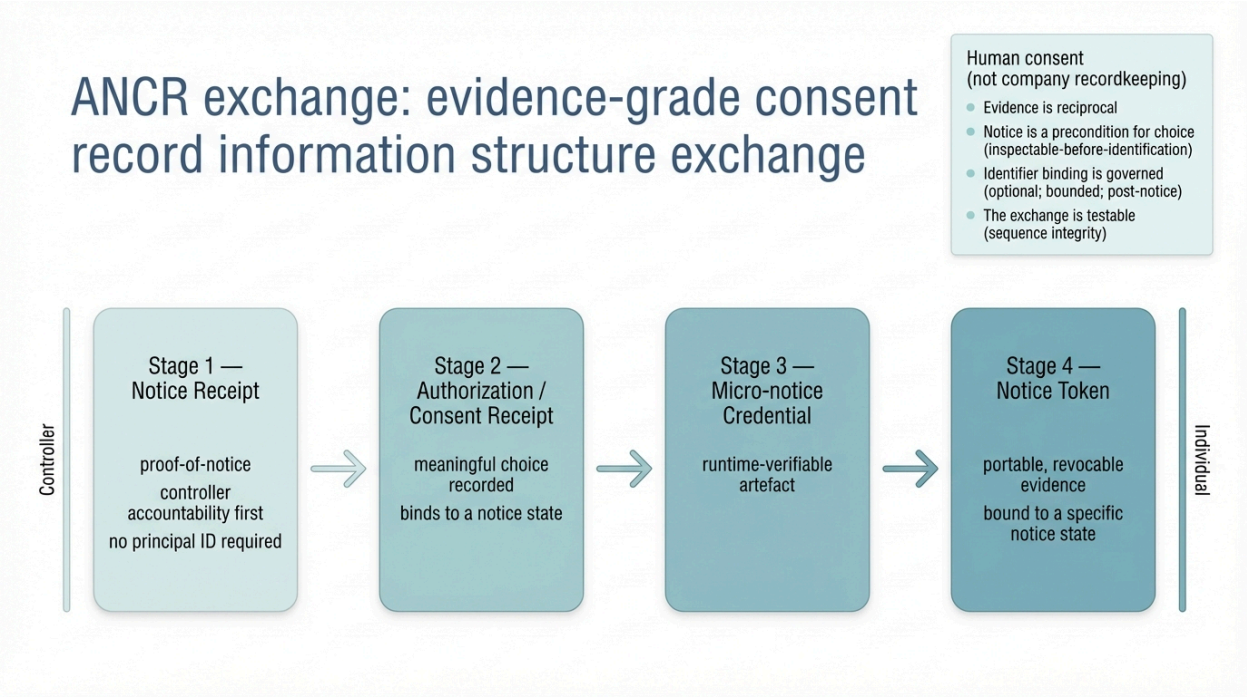
Annex C — CIR-first legal crosswalk (Convention 108+ anchored) v1



This annex is a regulator-facing crosswalk showing why **CIR-first** (Controller Identification Record first) is necessary for inspectable-before-identification transparency, and how ANCR profiles ISO/IEC CD 27560:2026 to make safeguards **testable**.

Term	Meaning (in this annex)	Term citation
CIR-first field / evidence requirement	What must be disclosed and verifiable *before identification* (and before processing).	Convention 108+ (fairness/transparency/accountability framing)

Term	Meaning (in this annex)	Term citation
Convention 108+ anchor	The cross-border legal principle the field operationalises (fairness, transparency, accountability, safeguards for transborder flows).	Convention 108+ Art. 5, Art. 8, Art. 10, Art. 11, Art. 14
ISO/IEC CD 27560:2026 alignment	Where ISO can represent the information (record header/body) and the ANCR constraint that makes the requirement conformance-testable (sequencing + reciprocity).	ISO/IEC CD 27560:2026 (draft)

CIR-first minimum disclosure set (draft)

CIR-first field / evidence requirement	Convention 108+ anchor	Legal references (108+)	ISO/IEC CD 27560:2026 alignment (and ANCR constraint)
Controller legal identity (legal name, jurisdiction, registration ID)	Transparency + accountability baseline; enables enforceable rights and remedies.	Art. 8(1) transparency; Art. 10 rights of the individual	Controller identification may appear in controller/organisation fields (profile-dependent). ANCR constraint: must be present in the Stage 1 artefact before any principal identifier or account binding.
Purpose(s) of processing (machine-readable, stable reference)	Purpose specification + fairness.	Art. 5(4) purpose limitation; Art. 5(2) fairness; Art. 8(1) transparency	Purposes can be represented but may be recorded post-hoc. ANCR constraint: purpose must be inspectable and bound to the issued Stage 1 notice state *before* collection/use/transfer.

CIR-first field / evidence requirement	Convention 108+ anchor	Legal references (108+)	ISO/IEC CD 27560:2026 alignment (and ANCR constraint)
Legal basis asserted (incl. whether consent is required)	Lawfulness + fairness; meaningful choice only applies when consent is the basis.	Art. 5(2) fairness; Art. 8(1) transparency (basis disclosure); Art. 10 (enabling contest/withdrawal workflows)	Supports multiple lawful bases; risk is “receipt-labelling” without sequencing. ANCR constraint: basis must be explicit and bound to the notice state and decision artefact (Stage 2 when consent applies).
Recipients / onward transfer classes (incl. cross-border signal)	Transparency of disclosures + transborder flows safeguards.	Art. 8(1) transparency; Art. 14 transborder flows	Recipients can be recorded without being pre-disclosed. ANCR constraint: disclose recipient classes before identification; bind them to Stage 1 notice state so they can be audited later.
Retention + deletion policy reference (or event log endpoint)	Storage limitation + practical rights exercise.	Art. 5(4) (not excessive/limited to purpose); Art. 10 (practical exercise of rights)	Retention can be represented. ANCR constraint: changes are recorded as inspectable evidence (event log / notice state) so the individual and auditors can compare versions over time.
Rights access mechanism that is not identifier-first (receipt ID / token)	Effective rights without disproportionate identification.	Art. 10 rights of the individual; Art. 5(2) fairness (proportionality)	Risk: `pii_principal_id` required in record header leading to identifier-first rights access. ANCR constraint: rights/withdrawal must work using scoped references (receipt IDs/tokens), not a routable stable identifier.

CIR-first field / evidence requirement	Convention 108+ anchor	Legal references (108+)	ISO/IEC CD 27560:2026 alignment (and ANCR constraint)
Proof-of-authority / governance binding (Code of Conduct / commitments)	Accountability + enforceable safeguards.	Art. 11 Codes of conduct; Art. 5(2) fairness; Art. 8(1) transparency	Governance-related fields exist (e.g., code of conduct). ANCR constraint: required at higher scopes of disclosure and must be inspectable as evidence (not only asserted text).

Why ANCR is a "Digital Public Transparency Infrastructure" style profile (embedded transparency)

ANCR profile claim	What it means in practice
Conformance-testable sequencing	Proves that notice was issued and inspectable *before identification and before processing* (not merely representable in a post-hoc record).
Convention 108+ cross-border baseline	Treats transborder, multi-controller ecosystems as the default digital condition; profiles ISO accordingly.
Reciprocal, portable evidence	Produces artefacts the individual can hold and use for dispute and rights; supports withdrawal propagation without identifier-first linkage. ANCR Resources: https://github.com/KantaraInitiative/ancr-wg